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Case Number: 25NNCV08977 Hearing Date: September 11, 2026 Dept: D

TENTATIVE RULING

Calendar: 10

Date: September 11, 2026

Case No: 25NNCV08977 Trial Date: Not yet set

Case Name: Jones v. Burbank Healthcare LLC, et al.

DEMURRER WITH MOTION TO STRIKE; MOTION TO COMPEL ARBITRATION

Moving Party: Defendant, Valley of Peace Cremation and Burial Services, Inc.

Defendants, Burbank Healthcare, LLC and Longwood Management, LLC

Responding Party: Plaintiffs, Bronwen Jones and The Estate of Renata Scharf Jones

RELIEF REQUESTED:

Sustain demurrer to fifth and sixth causes of action alleged in the First Amended Complaint and strike the sixth cause of action and the claims and prayer for punitive damages.

An order compelling Plaintiff to arbitrate the claims asserted against Burbank Healthcare LLC and Longwood Management LLC and to stay the proceedings pending completion of arbitration.

CAUSES OF ACTION: from First Amended Complaint

1) Professional Negligence

2) Wrongful Death [CCP § 337.60]

3) Elder and Dependent Adult Abuse [Welfare & Institutions Code § 15600 et seq.]

4) Negligence

5) Fraudulent Concealment

6) Interference with Right of Sepulcher

REQUEST FOR JUDICIAL NOTICE

The Court may take judicial notice of “[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States.” (Evidence Code, § 452, subd. (d).)

The court, however, may not take judicial notice of the truth of the contents of the documents. (*Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.) Documents are only judicially noticeable to show their existence and what orders were made such that the truth of the facts and findings within the documents are not judicially noticeable. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 885.)

Pursuant to Valley of Peace Cremation and Burial Services, Inc.’s request, the Court takes judicial notice of the following: (1) This Court’s May 8, 2026, Minute Order ; and (2) The records within Los Angeles Superior Court case no. 16STPB02409, filed in the probate court on July 18, 2016.

SUMMARY OF FACTS:

The First Amended Complaint (the “FAC”) alleges that Renata Scharf Jones (the “Decedent”) was admitted to defendant Burbank Healthcare LLC (“Burbank Healthcare”) in January 2016 for delirium caused by untreated urinary tract infections. Bronwen Jones (“Plaintiff”) is Decedent’s daughter. The FAC alleges that once admitted, Defendants and their staff, including defendant Dr. Michael Marsh (“Dr. Marsh”) repeatedly used physical restraints, failed to provide required exercises and repositioning, and left Decedent in the same position and soiled diapers for extended periods. The FAC alleges that Burbank Healthcare and defendant Longwood Management, LLC (“Longwood”) failed to provide sufficient staffing levels to ensure basic care needs. The FAC alleges that these ongoing failures substantially contributed to the worsening of Decedent’s condition, including progression from mild to severe global aphasia, bilateral knee contractures, recurrent urinary tract infections, severe pressure ulcers, sepsis, and a stroke in May 2020. Decedent passed away at Burbank Healthcare on February 27, 2025. Plaintiff alleges that no one informed her of her mother’s death and that the body was transferred to Valley of Peace Cremation and Burial Services, Inc. without family knowledge or consent. Plaintiff alleges that Dr. Marsh, as the physician in charge at the time of death, failed to direct that the body be embalmed or preserved for the autopsy that the family had requested. Plaintiff alleges that Defendants have refused to allow Plaintiff to view her mother’s remains and combined with their failure to embalm the body for an autopsy, Plaintiff has been completely deprived of any meaningful closure or ability to grieve her mother’s death. Plaintiff further alleges that she has been unable to obtain a death certificate for Decedent as the County of Los Angeles Department of Health Services Office has no death certificate on file for Decedent.

DEMURRER:

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; CCP, § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 212, superseded by statute as stated in *Branick v. Downey Savings & Loan Assn.* (2006) 39 Cal.4th 235, 242.) “[E]ach evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, “does not admit contentions, deductions or conclusions of fact or law.” (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

Fifth Cause of Action, Fraudulent Concealment

The elements of fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) intent to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) the plaintiff sustained damage as a result of the concealment or suppression of fact. (*Hambridge v. Healthcare Partners Medical Group, Inc.* (2015) 238 Cal.App.4th 124, 162.)

In California, fraud must be pled with specificity. (*Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184.) “The particularity demands that a plaintiff plead facts which show how, when, where, to whom, and by what means the representations were tendered.” (*Cansinov. Bank of America* (2014) 224 Cal.App.4th 1462, 1469.) Fraud allegations need not be liberally construed, general pleading of the legal conclusion of fraud is insufficient, and every element of the cause of action for fraud must be alleged fully, factually and specifically. (*Wilhelm v. Pray, Price, Williams & Russell* (1986) 186 Cal.App.3d 1324, 1331; see also *Quelimane Co., Inc. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47.)

Defendant Valley of Peace Cremation and Burial Services, Inc. (“Valley of Peace”) demurs to the fifth cause of action on the basis that Plaintiff fails to establish all the elements of a fraudulent concealment cause of action.

The Court previously sustained Valley of Peace’s demurrer to the Complaint on the grounds that Plaintiff did not sufficiently allege what representation was made to Plaintiff which was contrary to the alleged concealment nor did Plaintiff allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (*Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384; *Tenet Healthsystem Desert, Inc. v. Blue Cross of California* (2016) 245 Cal.App.4th 821, 838.)

The FAC sufficiently cures these defects. The FAC alleges that “[t]hrough an individual identified as “Don” and other staff, [Valley of Peace] provided misleading information, moved the body without proper notification, refused to allow Plaintiff to view her mother’s remains, stored the body unembalmed in improper conditions (preventing an autopsy), demanded storage fees, and refused to produce records in response to Plaintiff’s May 13, 2026 demand, asserting technical and procedural objections while continuing to withhold information.” (FAC, ¶ 29.) The FAC alleges that “[t]hese actions prevented Plaintiff from grieving, viewing her mother, obtaining an autopsy, and fulfilling her mother’s wishes for cremation with ashes placed at the San Francisco War Memorial Opera House.” (FAC, ¶ 29.) The FAC further alleges that on August 20, 2025, “Don” left a voicemail for Plaintiff from a phone number that, on information and belief, belongs to a lawyer’s office in Texas.” (FAC, ¶ 29.)

The FAC sufficiently alleges that Valley of Peace concealed or suppressed a material fact regarding, among other things, the location of the Decedent’s remains (Compl., ¶ 61) and that Valley of Peace had a duty to inform Plaintiff of the location of the

remains and dispose of the remains in accordance with Plaintiff's wishes. (See *Christensen v. Superior Court* (1991) 54 Cal.3d 868, 882.) The FAC alleges that Valley of Peace intended to defraud Plaintiff (Compl., ¶ 62), that Plaintiff was unaware of the true conditions and location of her mother's remains (Compl., ¶ 62), and that Plaintiff would have acted differently had she known of the concealed or suppressed fact. (Compl., ¶¶ 62-63.) Finally, Plaintiff alleges that she sustained damage as a result of the concealment or suppression of fact. (Compl., ¶ 64) Thus, for pleading purposes, Plaintiff has sufficiently stated a fraudulent concealment cause of action.

The demurrer to the fifth cause of action is OVERRULED.

Sixth Cause of Action, Interference with Right of Sepulcher

"The right to control the disposition of the remains of a deceased person, the location and conditions of interment, and arrangements for funeral goods and services to be provided [...] vests in, and the duty of disposition and the liability for the reasonable cost of disposition of the remains devolves upon [...] The sole surviving competent adult child of the decedent [or] The surviving competent adult person or persons respectively in the next degrees of kinship." (Health & Safety Code § 7100, subd. (a).)

Valley of Peace demurs to the sixth cause of action on the ground that the FAC fails to allege that Plaintiff "is, in fact, the successor-in-interest to Renata Scharf Jones, such as that she is the sole surviving competent adult child or that all surviving, competent adult children agree on the disposition of the remains." (Demurrer, p.p. 14:27-15:1.) The FAC alleges that Plaintiff is Decedent's "next of kin and sole competent adult child." (FAC, ¶ 66.) For pleading purposes, nothing more is required.

The demurrer to the sixth cause of action is OVERRULED.

MOTION TO STRIKE:

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (a) strike out any irrelevant, false, or improper matter inserted in any pleading; or (b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP § 436, subds. (a), (b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)

Valley of Peace moves to strike the sixth cause of action on the basis that Plaintiff amended their Complaint to add the sixth cause of action without leave of the Court to do so and the amendment is beyond the scope of the Court's order granting leave to amend. In the opposition, Plaintiff argues that the right of sepulcher was already a part of the case as the original Complaint had alleged "loss of the right of sepulcher" as an element of damages. (Opp., p. 11:22-25.)

The Court finds that adding the sepulcher cause of action was beyond the scope of the order granting leave to amend. Sustaining the demurrer to the prior Complaint with leave to amend granted Plaintiff leave to amend only the causes of action in the prior Complaint, not leave to add an entirely new cause of action. (*Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995, 1015.) "Following an order sustaining a demurrer or a motion for judgment on the pleadings with leave to amend, the plaintiff may amend his or her complaint only as authorized by the court's order. The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend." (*Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 456 [quoting *Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023].)

The Court previously sustained the demurrer on the ground that Plaintiff had not pleaded the fraud claim with the requisite specificity. (5/8/2026 Minute Order.) Plaintiff's new cause of action for interference with the right of sepulcher does not respond to the Court's reasons for sustaining the earlier demurrer. (Compare *Patrick v. Alacer Corp.*, supra, 167 Cal.App.4th

at 1015 [after demurer sustained for plaintiff's apparent lack of standing on shareholder claims, complaint amended to add claim for declaratory relief to establish plaintiff's community property interest in shareholdings].)

Thus, the motion to strike is GRANTED as to the sixth cause of action for interference with the right of sepulcher.

Valley of Peace also moves to strike the claims and prayer for punitive damages on the basis that the FAC fails to plead facts to show that Valley of Peace acted with fraud, malice and oppression.

Punitive damages may be recovered upon a proper showing of malice, fraud, or oppression. (Civil Code, § 3294, subd. (a).) "Malice" is defined as conduct intended to cause injury to a person or despicable conduct carried on with a willful and conscious disregard for the rights or safety of others. (Turman v. Turning Point of Cent. Cal., Inc. (2010) 191 Cal.App.4th 53, 63.) "Oppression" means despicable conduct subjecting a person to cruel and unjust hardship, in conscious disregard of the person's rights. (Id.) "Fraud" is an intentional misrepresentation, deceit, or concealment of a material fact known by defendant, with intent to deprive a person of property, rights or otherwise cause injury. (Id.) Conclusory allegations, devoid of any factual assertions, are insufficient to support a conclusion that parties acted with oppression, fraud or malice. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1042.)

The FAC alleges that Valley of Peace moved the Decedent's body to a remote industrial park without notifying Plaintiff, refused to allow Plaintiff to view her mother's remains or to pay for cremation or related services, provided misleading and inconsistent information about the location and condition of the body, and stored the body in improper conditions that prevented an autopsy. (FAC, ¶ 61.) If these allegations are proven to be true, a reasonable trier of fact could conclude that Valley of Peace acted with malice, oppression or fraud within the meaning of Civil Code section 3294. Thus, the Court declines to strike the requests for punitive damages.

MOTION TO COMPEL ARBITRATION

Defendants Burbank Healthcare, LLC and Longwood Management, LLC's motion to compel arbitration previously came up for hearing on July 24, 2026. The Court continued the motion to allow Plaintiff to retain a handwriting expert and file supplemental briefing regarding the authenticity of the Decedent's signature on the arbitration agreement.

Plaintiff filed supplemental briefing on August 28, 2026. Burbank Healthcare and Longwood Management request a continuance to independently evaluate the new evidence submitted with Plaintiff's supplemental briefing. Moving Defendants notes that "[a]t the July 24, 2026, hearing on Defendants' Motion to Compel Arbitration, the parties and the Court discussed the potential need for forensic examination of the signatures appearing on the Admission Agreement and Resident-Facility Arbitration Agreement. It was contemplated and agreed that, following Plaintiff's submission of their forensic expert's analysis, Defendants would have an opportunity to retain their own expert, conduct an independent examination, and respond to Plaintiff's supplemental submission." (Resp. to Supp. Brief, p. 2:11-16.)

Burbank Healthcare and Longwood Management assert that "after receipt of the Supplemental Brief and supporting declaration, Defendants retained Forensic Document Examiner, Linton A. Mohammed, Ph.D., D-ABFDE, to independently evaluate the questioned signatures and Plaintiff's expert analysis." (Resp. to Supp. Brief, p. 2:18-21.)

The Court finds that Burbank Healthcare and Longwood Management's request for a brief continuance so that their retained expert can evaluate the signatures is reasonable. Thus, the request for a continuance is GRANTED. Discovery is STAYED pending a determination on the motion to compel arbitration.

RULING:

Defendant Valley of Peace Cremation and Burial Services, Inc.'s Demurrer is OVERRULED. The Motion to Strike is GRANTED as to the sixth cause of action and DENIED as to the claims and prayer for punitive damages.

Defendants Burbank Healthcare, LLC and Longwood Management, LLC's Motion to Compel Arbitration is CONTINUED to October 23, 2026 at 8:30 am. Defendants' supplemental reply is due by October 12, 2026.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.